

Galaxy

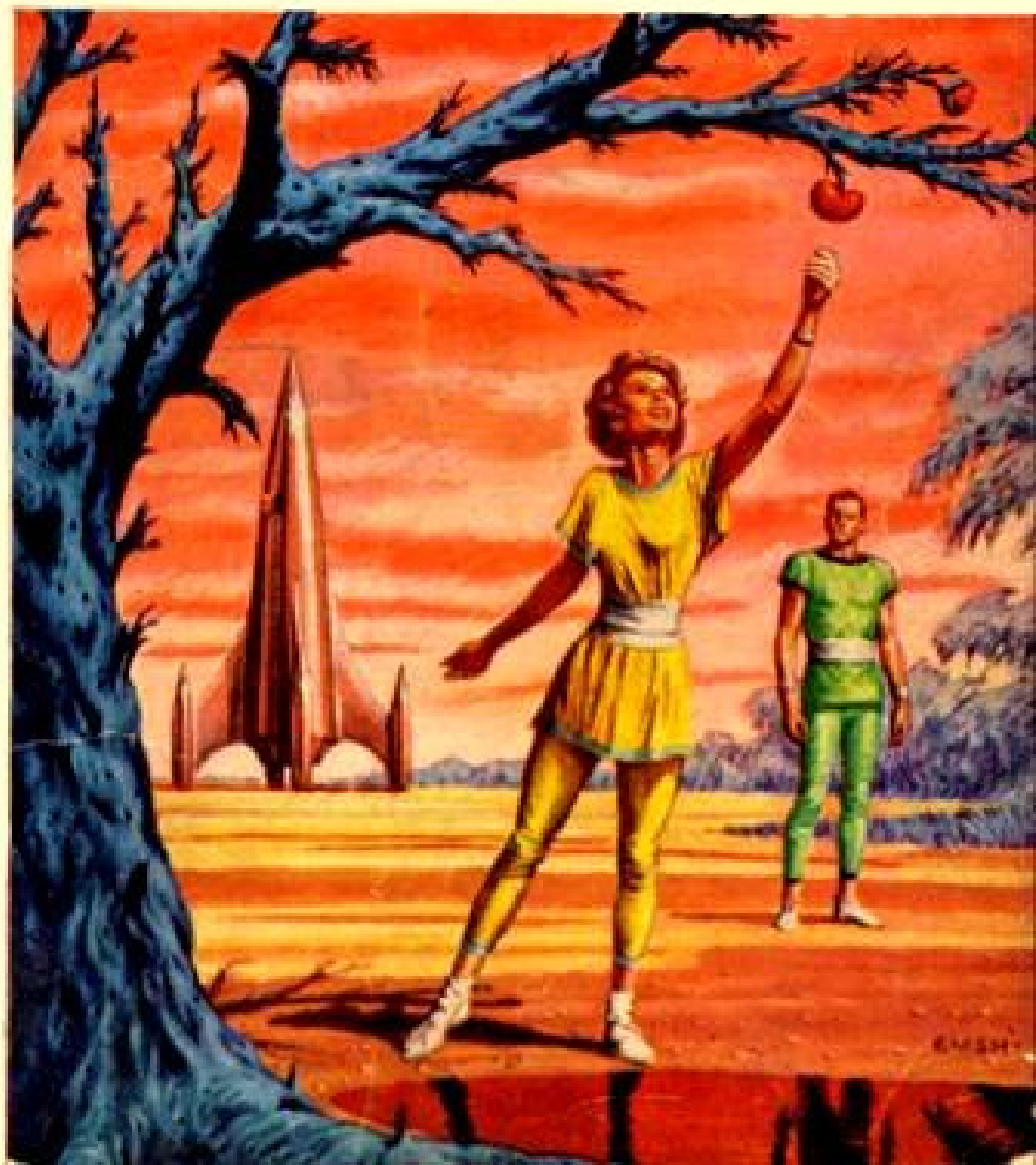
SCIENCE FICTION

APRIL 1954

354

THE MIDAS PLAGUE

By Frederik Pohl



Galaxy

SCIENCE FICTION

APRIL 1954

354

THE MIDAS PLAGUE

By Frederik Pohl



The Project Gutenberg eBook of Wainer

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Wainer

Author: Michael Shaara

Illustrator: William Ashman

Release date: May 3, 2010 [eBook #32230]

Most recently updated: January 6, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/32230

Credits: Produced by Greg Weeks, Mary Meehan and the Online
Distributed Proofreading Team at <https://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK WAINER ***

Wainer

By **MICHAEL SHAARA**

Illustrated by ASHMAN

[Transcriber Note: This etext was produced from Galaxy Science Fiction April 1954. Extensive research did not uncover any evidence that the U.S. copyright on this publication was renewed.]

The man in the purple robe was too old to walk or stand. He was wheeled upon a purple bench into the center of a marvelous room, where unhuman beings whom we shall call "They" had gathered and waited. Because he was such an old man, he commanded a great sum of respect, but he was nervous before Them and spoke with apology, and sometimes with irritation, because he could not understand what They were thinking and it worried him.

Certainly, life has a meaning—though sometimes it takes a lifetime to learn what it is.

Yet there was no one left like this old man. There was no one anywhere who was as old—but that does not matter. Old men are important not for what they have learned, but for whom they have known, and this old man had known Wainer.

Therefore he spoke and told Them what he knew, and more that he did not know he was telling. And They, who were not men, sat in silence and the deepest affection, and listened....

William Wainer died and was forgotten (said the old man) much more than a thousand years ago. I have heard it said that people are like waves, rising and riding and crumbling, and if a wave fell once on a shore long ago, then it left its mark on the beach and changed the shape of the world, but is not

remembered. That is true, except for the bigger waves. There is nothing remarkable in Wainer's being forgotten then, because he was not a big wave. In his own time, he was nothing at all—he even lived off the state—and the magnificent power that was in him and that he brought to the world was never fully recognized. But the story of his life is probably the greatest story I have ever heard. He was the beginning of You. I only wish I had known.

From his earliest days, as I remember, no one ever looked after Wainer. His father had been one of the last of the priests. Just before young Wainer was born in 2430, the government passed one of the great laws, the we-take-no-barriers-into-space edict, and religious missionaries were banned from the stars. Wainer's father never quite recovered from that. He went down to the end of his days believing that the Earth had gone over to what he called "Anti-Christ." He was a fretful man and he had no time for the boy.

Young Wainer grew up alone. Like everyone else, he was operated on at the age of five, and it turned out that he was a Reject. At the time, no one cared. His mother afterward said that she was glad, because Wainer's head even then was magnificently shaped and it would have been a shame to put a lump on it. Of course, Wainer knew that he could never be a doctor, or a pilot, or a technician of any kind, but he was only five years old and nothing was final to him. Some of the wonderful optimism he was to carry throughout his youth, and which he was to need so badly in later years, was already with him as a boy.

And yet You must understand that the world in which Wainer grew up was a good world, a fine world. Up to that time, it was the best world that ever was, and no one doubted that—

(Some of Them had smiled in Their minds. The old man was embarrassed.)

You must try to understand. We all believed in that world; Wainer and I and everyone believed. But I will explain as best I can and doubtless You will understand.

When it was learned, long before Wainer was born, that the electronic brains could be inserted within the human brain and connected with the main neural paths, there was no one who did not think it was the greatest

discovery of all time. Do You know, can You have any idea, what the mind of Man must have been like before the brains? God help them, they lived all their lives without controlling themselves, trapped, showered by an unceasing barrage of words, dreams, totally unrelated, uncontrollable memories. It must have been horrible.

The brains changed all that. They gave Man freedom to think, freedom from confusion: they made him logical. There was no longer any need to memorize, because the brains could absorb any amount of information that was inserted into them, either before or after the operation. And the brains never forgot, and seldom made mistakes, and computed all things with an inhuman precision.

A man with a brain—or "clerks," as they were called, after Le Clerq—knew everything, literally *everything*, that there was to know about his profession. And as new information was learned, it was made available to all men, and punched into the clerks of those who desired it. Man began to think more clearly than ever before, and thought with more knowledge behind him, and it seemed for a while that this was a godlike thing.

But in the beginning, of course, it was very hard on the Rejects.

Once in every thousand persons or so would come someone like Wainer whose brain would not accept the clerk, who would react as if the clerk were no more than a hat. After a hundred years, our scientists still did not know why. Many fine minds were ruined with their memory sections cut away, but then a preliminary test was devised to prove beforehand that the clerks would not work and that there was nothing that anyone could do to make them work. Year by year the Rejects, as they were called, kept coming, until they were a sizable number. The more fortunate men with clerks outnumbered the Rejects a thousand to one, and ruled the society, and were called "Rashes"—slang for Rationals.

Thus the era of the Rash and Reject.

Now, of course, in those days the Rejects could not hope to compete in a technical world. They could neither remember nor compute well enough, and the least of all doctors knew more than a Reject ever could, the worst of all chemists knew much more chemistry, and a Reject certainly could never be a space pilot.

As a result of all this, mnemonics was studied as never before; and Rejects were taught memory. When Wainer was fully grown, his mind was more ordered and controlled and his memory more exact than any man who had lived on Earth a hundred years before. But he was still a Reject and there was not much for him to do.

He began to feel it, I think, when he was about fifteen. He had always wanted to go into space, and when he realized at last that it was impossible, that even the meanest of jobs aboard ship was beyond him, he was very deeply depressed. He told me about those days much later, when it was only a Reject's memory of his youth. I have lived a thousand years since then, and I have never stopped regretting that they did not let him go just once when he was young, before those last few days. It would have been such a little thing for them to do.

I first met Wainer when he was eighteen years old and had not yet begun to work. We met in one of those music clubs that used to be in New York City, one of the weird, smoky, crowded little halls where Rejects could gather and breathe their own air away from the—as we called them—"lumpheads." I remember young Wainer very clearly. He was a tremendous man, larger even than You, with huge arms and eyes, and that famous mass of brownish hair. His size set him off from the rest of us, but it never bothered him, and although he was almost painfully awkward, he was never laughed at.

I don't quite know how to describe it, but he was very big—ominous, almost—and he gave off an aura of tremendous strength. He said very little, as I remember; he sat with us silently and drank quite a bit, and listened to

the music and to us, grinning from time to time with a wonderfully pleasant smile. He was very likable.

He was drawn to me, I think, because I was a *successful* Reject—I was just then becoming known as a surgeon. I sincerely believed that he envied me.

At any rate, he was always ready to talk to me. In the early days I did what I could to get him working, but he never really tried. He had only the Arts, You see, and they never really appealed to him.

(There was a rustle of surprise among Them. The old man nodded.)

It is true. He never wanted to be an artist. He had too much need for action in him, and he did not want to be a lonely man. But because of the Rashes, he had no choice.

The Rashes, as You know, had very little talent. I don't know why. Perhaps it was the precision, the methodicity with which they lived, or perhaps—as we proudly claimed—the Rejects were Rejects because they had talent. But the result was wonderfully just: the Rejects took over the Arts and all other fields requiring talent. I myself had good hands; I became a surgeon. Although I never once operated without a Rash by my side, I was a notably successful surgeon.

It was a truly splendid thing. That is why I say it was a good world. The Rash and Reject combined in society and made it whole. And one thing more was in favor of the Reject: he was less precise, less logical, and therefore more glamorous than the Rash. Hence Rejects always had plenty of women, and Reject women did well with men.

But the Rash, in the end, had everything that really counted.

Well, there was only such work that a Reject could do. But none of it fitted Wainer. He tried all the arts at one time or another before he finally settled on music. In music there was something vast and elemental; he saw that he could build. He began, and learned, but did little actual work. In those beginning years, he could be found almost always out by the Sound, or wandering among the cliffs across the River, his huge hands fisted and groping for something to do, wondering, wondering, why he was a Reject.

The first thing he wrote was the *Pavanne*, which came after his first real love affair. I cannot remember the girl, but in a thousand years I have not forgotten the music. It may surprise You to learn that the *Pavanne* was a commercial success. It surprised Wainer, too. The Rashes were actually the public, and their taste was logical. Most of all they liked Bach and Mozart, some Beethoven and Greene, but nothing emotional and obscure. The *Pavanne* was a success because it was a love piece, wonderfully warm and gay and open. Wainer never repeated that success.

That was one of the few times I ever saw him with money. He received the regular government fee and a nice sum in royalties, but not quite enough for a trip into space, so he drank it all up. He was happy for a while. He went back to the music clubs and stayed away from the beaches, but when I asked him if he was working on anything else, he said no, he had nothing else to write.

Right after that, he fell in love again, this time with his mother.

The longevity treatment was still fairly new; few had stopped to consider that, as men grew older, their mothers remained young, as tender and fresh as girls in school, and there is no woman as close to a man as his mother. Inevitably, a great many men fell in love that way. Wainer was one. His mother, poor girl, never suspected, and it was pure anguish for him. It was some time before he had recovered enough to talk about it, and by then he was thirty. One of the ways he recovered was by writing more music.

There were a lot of lesser works, and then came the First Symphony.

Looking back over the centuries, I cannot understand how the thing was so controversial. The Rashes wrote of it harshly in all their papers. The Rejects almost unanimously agreed that it was a masterpiece. I myself, when I heard it, became aware that Wainer was a great man.

Because of the controversy which raged for a while, Wainer made some money, but the effect of the criticism was to keep him from writing for years. There is something in that First Symphony of the Wainer of later years, some of the hungry, unfinished, incomprehensible strength. Wainer knew that if he wrote anything else, it would be much like the First, and he recoiled from going through it all again. He went back to the beaches.

He had something rare in those days—a great love for the sea. I suppose it was to him what space is to others. I know that the next thing he wrote was a wild, churning, immortal thing which he called Water Music; and I know that he himself loved it best of anything he wrote, except, of course, the Tenth Symphony. But this time was worse than the last. The only ones who paid any attention to Water Music were the Rejects, and they didn't count.

If Wainer had been a true composer, he would have gone on composing whether anyone cared or not, but as I have said, he was not really an artist. Despite the fact that he was the greatest composer we have ever known, music was only a small thing to him. He had a hint, even then, that although he had been born on Earth there was something in him that was alien, and that there was so much left to do, so much to be seen, and because he could not understand what it was that fired him, he ground himself raw, slowly, from within, while walking alone by the rocks on the beaches.

When I saw him again, after I took ship as a surgeon to Altair, he was forty, and he looked—I borrow the phrase—like a man from a land where nobody lived. Having written no music at all, he was living again on government charity. He had a room, of sorts, and food, but whatever money he got he drank right up, and he was such a huge and haggard man that even Rejects left him carefully alone. I did what I could for him, which wasn't much except keep him drunk. It was then that he told me about his feeling for space, and a great many other things, and I remember his words:

"I will have to go out into space some day. It is almost as if I used to live there."

Shortly after that, the coughing began. But it came very seldom and seemed no more than a common thing. Because there was no longer any such thing as disease, neither Wainer nor I thought much about it, except that Wainer

went and got some pills from the government. For a long while—we may be thankful for that, at least—the cough did not bother him.

And so the years passed.

When Wainer was forty-two, he met the girl. Her name was Lila. She was a Rash, a teacher of mnemonics, and all I can remember of her are the dark-brown lovely eyes, and the warm, adoring face. She was the only woman that Wainer ever really loved, except perhaps his mother, and he chose to have his child by her.

Because of the population problem, a man could have one child then every hundred years. Wainer had his child by Lila, and although he was very happy that the boy turned out to be a Rash, he never paid him much attention.

He was about fifty then and beginning to break down. So that he could see Lila often and with pride, he wrote a great deal during those years, and his lungs were collapsing all that while. It was out of that period that he wrote all his symphonies from the Second to the Ninth.

It is unbelievable; they were all purely commercial. He tossed them out with a part of his mind. I cannot help but wonder what the rest of that mind was doing.

I can see him now, that gaunt and useless man, his great muscled arms chained to a pen, his stony, stretching legs cramped down beneath a desk....

I did not see him again for almost ten years, because he went away. He left New York for perhaps the only time in his life, and began to wander across the inland of the American continent. I heard from him rarely. I think it was in one of those letters that he first mentioned the pain that was beginning in his lungs.

I never knew what he did, or how he lived during those ten years. Perhaps he went into the forests and worked and lived like a primitive, and perhaps he just walked. He had no transportation. I know that he was not wholly

sane then, and never was again until the end of his life. He was like a magnificent machine which has run out of tune for too many years—the delicate gears were strained and cracking.

(The old man paused in the utter silence, while several tears dropped down his cheek. None of Them moved, and at last he went on.)

Near the end of the ten years, I received a package from him in the mail. In it was a letter and the manuscript to the Storm in Space Overture. He wanted me to register the work and get the government fee, and he asked me the only favor he had ever asked of anyone, that I get him the money, because he was going into space.

He came back some weeks later, on foot. I had gotten the money from Rejects—they had heard the Overture—it was enough. He brought Lila with him and was going to make reservations. He was heading, I think, only as far as Alpha Centauri.

It was too late.

They examined him, as someone should have a long time ago, as someone would have if he had only ever asked, but in the end it would have made no difference either way, and it was now that they found out about his lungs.

There was nothing anyone could do. At first I could not believe it. People did not get sick and die. *People just did not die!* Because I was only a Reject and a surgeon, no Rash doctor had ever told me that this had happened before, many times, to other men. I heard it not from the Rashes, but from Wainer.

His lungs were beginning to atrophy. They were actually dying within his body, and no one as yet knew why, or could stop it. He could be kept alive without lungs, yes, for a long while. I asked if we could graft a lung into him and this is what I was told: Because no one had yet synthesized human tissue, the graft would have to be a human lung, and in this age of longevity there were only a few available. Those few, of course, went only to important men, and Wainer was nothing.

I volunteered a lung of my own, as did Lila, as did many Rejects. There was hope for a while, but when I looked into Wainer's chest I saw for myself that there was no way to connect. So much was wrong, so much inside him was twisted and strange that I could not understand how he had lived at all. When I learned of the other men who had been like this, I asked what had been done. The answer was that nothing had been done at all.

So Wainer did not go out into space. He returned instead to his single room to sit alone and wait, while the cool world around him progressed and revolved, while the city and its people went on without notice, while a voucher was being prepared somewhere, allowing the birth of another child because citizen Wainer would soon be dead.

What could the man have thought, that huge, useless man? When he sat by his window and watched the world moving by, and looked up at night to the stars, and when he drank cool water, or breathed morning air, or walked or sat or lay down, what was there for him to think?

He had one life, the same as any man, one time to be upon the Earth, and it was ending now as a record of nothing, as a piece of loneliness carved with great pain, as a celestial abortion, withered, wasted. There was nothing in his life, nothing, nothing, which he had ever wanted to be, and now he was dying without reason in a world without reason, unused, empty, collapsing, alone.

He went down to the beach again.

In the days that came, he was a shocking sight. What was happening became known, and when he walked the streets people stared at the wonder, the sickness, the man who was dying. Therefore he went out to the beaches and slept and took no treatments and no one will ever know what was in his mind, his million-faceted mind, as he waited to die.

Well, it was told to me at last because I knew Wainer, and they needed him. It was told hesitantly, but when I heard it I broke away and ran, and in the clean air of the beach I found Wainer and told him.

At first he did not listen. I repeated it several times. I told him what the Rashes had been able to learn. He stood breathing heavily, face to the Sun, staring out over the incoming sea. Then I knew what he was thinking.

The Rashes had told me this:

The atrophy of the lungs was not all that happened, but it was the major thing, and it came only to Rejects. After years of study, it could be stated, cautiously, that the disease seemed to be in the nature of an *evolutionary* change. For many years they had probed for the cause of the Rejects, and the final conclusion—to be kept from the people—was that there was some variation in the brain of the Reject, something subtly, unfathomably different from the brain of a Rash. And so it was also with the lungs, and with other parts of the body. And the scientists thought it was Evolution.

I told this to Wainer, and more, while peace spread slowly across his rugged face. I said that the nature of life was to grow and adapt, and that no one knew why. The first cells grew up in the sea and then learned to live on land, and eventually lifted themselves to the air, and now certainly there was one last step to be taken.

The next phase of change would be into space, and it was clear now what Wainer was, what all the Rejects were.

Wainer was a link, incomplete, groping, unfinished. A link.

It meant more to him, I think, than any man can ever really understand. He had a purpose, after all, but it was more than that. He was a creature with a home. He was part of the Universe more deeply than any of us had ever been. In the vast eternal plan which only You and Your kind can see, Wainer was a beginning, vital part. All the long years were not wasted. The pain of the lungs was dust and air.

Wainer looked at me and I shall never forget his face. He was a man at peace who has lived long enough.

(Because They knew much more than the old man could ever know, They were utterly, nakedly absorbed, and the silence of the room was absolute. The old man tired and closed to the end, while They—unbreathing,

undying, telepathic and more, the inconceivable next phase in the Evolution of Man—listened and learned.)

He lived for another six months, long enough to take part in the experiments the Rashes had planned, and to write the Tenth Symphony. Even the Rashes could not ignore the Tenth.

It was Wainer's valedictory, a sublime, triumphant summation, born of his hope for the future of Man. It was more than music; it was a cathedral in sound. It was Wainer's soul.

Wainer never lived to hear it played, to hear himself become famous, and in the end, I know, he did not care. Although we could have saved him for a little while, although I pleaded with him to remain for the sake of his woman and his music, Wainer knew that the pattern of his life was finished, that the ending time was now.

For Wainer went out into space at last, into the sweet dark home between the stars, moving toward the only great moment he would ever have.

The Rashes wanted to see how his lungs would react in alien atmospheres. Not in a laboratory—Wainer refused—but out in the open Sun, out in the strange alien air of the worlds themselves, Wainer was set down. On each of a dozen poisonous worlds he walked. He opened his helmet while we tiny men watched. He breathed.

And he lived.



He lived through methane, through carbon dioxide, through nitrogen and propane. He existed without air at all for an incredible time, living all the while as he never had before, with a wonderful, glowing excitement. And then at last there was that final world which was corrosive. It was too much, and Wainer smiled regretfully, holding himself upright with dignity by the base of an alien rock, and still smiling, never once moving to close his helmet, he died.

There was a long pause. The old man was done.

They looked at him with the deep compassion that his own race had denied to those who were different or lesser than themselves.

One of Them arose and gently spoke.

"And now you are the last of your kind, as alone as Wainer was. We are sorry."

There was no bitterness in the old man's voice. "Don't be. Wainer was content to die, knowing that he was the link between us and You. Yet neither he nor You could have been if humanity had never existed. We had our place in the endless flow of history. We were, so to speak, Wainer's parents and Your grandparents. I, too, am content, proud of the children of Man."

*** END OF THE PROJECT GUTENBERG EBOOK WAINER ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project GutenbergTM License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.